



Office of the Attorney General

Division of Victim Services

Governor
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Crime Victim Compensation Program Application Instructions

Before completing the application for compensation, please read the instructions and the definitions of the types of losses available for compensation. If you need assistance, please contact the Division of Victim Services.

General Information/Instructions:

- Please type or print clearly in blue or black ink.
- Attach all bills, receipts, estimates, or provide contact information for verification of the expense amounts.
- If you have not received a letter or phone call from our office within 30 days after mailing in your application, please call 307-777-7200 or send an e-mail to inquire about the status of your claim. If you change your address, you **MUST** notify the division.
- You do not need to wait for your case to go to trial or for the defendant to be apprehended before applying for compensation. If you do not know the status of your case, you have the right to contact law enforcement or the prosecutor's office.
- If you have not been informed of your rights as a victim of crime, please contact our agency.
- A federal crime is an incident occurring within a national park, military base, an Indian reservation, etc. or is investigated by federal law enforcement agencies, such as the F.B.I.
- The maximum benefits for a claim may not exceed \$15,000 and can be paid for 2 years from the date of the crime. Mental health expenses can be paid for 3 years from the date of the crime.
- The law does not allow compensation for property loss or pain and suffering.

A person is eligible for compensation if:

- The crime occurred in Wyoming.
- The injury or death occurred as a result of a crime.
- The person was attempting to prevent the commission of a criminal act or apprehend a person committing a crime.
- The person was assisting law enforcement, or a victim of a crime.



"Speaking as One Voice for Victims of Crime"

Victims Helpline Toll Free Number: (888) 996-8816

V/TTY: (888) 996-8816

SAVIN: (866) 994-8463

E-mail: ag-victimservices@wyo.gov

Web Site: dvs.wyo.gov

- The crime was reported to law enforcement and the victim cooperated fully with the investigation and prosecution of the crime.
- The victim's conduct did not contribute to the injury or death.
- An application is filed within one (1) year of the date of the crime.
- The compensation will not benefit the offender in any way.

Types of Compensation Available:

- **MEDICAL/MENTAL HEALTH-** The cost of medical and dental services, mental health counseling, prescriptions, prosthetic devices, eyeglass, dentures, physical therapy and services rendered in accordance with any method of healing recognized by the law of this state. Elderly victims of fraud are eligible for mental health counseling only.
- **LOSS OF EARNINGS-** The victim must be employed on the date of the crime. Victims who are self-employed may be required to submit additional information for verifying lost wages. Loss of earnings is compensated at the federal minimum wage or actual loss, whichever is less at the time of the crime. Collateral sources such as vacation or sick pay must be used before lost wages will be compensated.
- **LOSS OF SUPPORT-** Victim must be employed on the date of the crime. Loss of support may be awarded to dependents of a deceased victim or a victim who is incapacitated and was employed at the time of the crime and is no longer contributing to the support of the family. Loss of support is compensated at the federal minimum wage or actual loss, whichever is less at the time of the crime.
- **FUNERAL/BURIAL-** Funeral related expenses such as burial or cremation costs, headstone, flowers, clergy costs, musical/soloist fees, cultural exchanges etc. Maximum benefit \$7,000.
- **OTHER EXPENSES-** Travel costs, replacement of personal items taken as evidence, and crime scene clean-up (must be filed with homeowners/renters insurance first). Attach itemized lists/bills/receipts.
- **RELOCATION EXPENSES-** Expenses to relocate a victim to another community or state due to a threat of personal injury. Expenses for relocation apply only if the crime scene was the home of the victim (domestic violence, homicide, and sexual assaults only). Examples: U-Haul, gas, mileage, per diem. Threat must be verified in writing by law enforcement, prosecuting attorney, or any agency with statutory authority.
- **CATASTROPHIC INJURY-** May be awarded to a victim if they have sustained partial or permanent disability (loss of eyesight, hearing, or limbs) as a result of the crime. A physician must verify this loss. In addition, a catastrophic award can apply to the cost of an air ambulance. The maximum catastrophic award is \$10,000 in addition to the overall award of \$15,000.
- **ASSOCIATED VICTIMS-** If immediate family or household members, other than the victim, are seeking compensation for counseling or other economic loss, please request an associated victim's application from your victim advocate.

IMPORTANT NOTE: Crime Victims Compensation is a payer of last resort. Before compensation can be considered for award, all collateral sources must be exhausted. Examples of collateral sources are Social Security, health insurance, life insurance, Medicaid, Medicare, vacation, or sick pay.